

24STCV29484 24STCV29484

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 24STCV29484 Hearing Date: August 7, 2026 Dept: 617

Dept.

617

Date:

8-7-26

Case

#: 24STCV29484

Trial

Date: 2-1-27

LEAVE TO AMEND

MOVING

PARTY: Defendant, City of Los Angeles acting by and through the Los Angeles

Department of Water and Power

RESPONDING

PARTY: Unopposed/Plaintiffs, William Stan Spry and Heidi Spry

RELIEF

REQUESTED

Motion

for Leave to Amend Answer

SUMMARY

OF ACTION

Plaintiffs

William Stan Spry and Heidi Spry sued Defendant Los Angeles Department of Water and Power after improvements to the road and drainage leading to the Hollywood Reservoir allegedly caused rainwater to be directed, redirected, and to flood toward and into Plaintiffs' property. Plaintiffs assert claims for inverse condemnation, private nuisance, and negligence.

RULING: Granted.

Defendant moves for leave to amend

its answer to add an affirmative defense for failure to join necessary parties.

The basis for the amendment is Defendant's discovery that the new owner of Plaintiffs' property posted a permit on the front door about mold remediation.

Defendant believes the mold may be related to the events involved in the instant action. Plaintiffs filed a "conditional" non-opposition to the motion, referencing their opposition to the withdrawn motion to join necessary party and their pending sanctions motion. Defendant's motion is granted.

A

motion for leave to amend must comply with the requirements set forth in California Rules of Court, rule 3.1324, which states as follows:

(a) Contents of motion

A

motion to amend a pleading before trial must:

(1)

Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2)

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3)

State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A

separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4)

The reasons why the request for amendment was not made

earlier.

Dilatory delays and prejudice to the opposing parties is a valid ground for denial. (*Hirsa v.*

Superior Court (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-88.)

Leave

to amend is generally liberally granted. (Code Civ. Proc., § 473, subd. (a); *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) The Court will not generally consider the validity of the proposed amended pleading in ruling on a motion for leave, instead deferring such determinations for a demurrer or motion to strike, unless the proposed amendment fails to state a valid claim as a matter of law. (*Kittredge*

Sports Co. v. Superior Court (1989) 213 Cal. App.3d 1045, 1048; *California Casualty Gen. Ins. Co. v.*

Superior Court (1985) 173 Cal.App.3d 274, 280-81 disapproved of on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23

Cal.4th 390.)

Defendant

is granted leave to amend. Newly associated counsel discovered the basis for amendment on March 10, 2026 when it conducted a site inspection at the home and saw the new owner had posted a permit about mold remediation. [Abbott Decl. ¶¶ 10, 15.] Trial is more than 5 months away and there is no indication that amendment prejudices Plaintiffs. Plaintiffs' prior opposition to the withdrawn motion and their sanctions motion are immaterial to disposition of the instant motion. Defendant's motion is therefore granted.

Defendant

to file a separate copy of the amended answer within 10 days of this order.

Defendant

to give notice.